



File No.: EXP202312990

RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against the EDUCATION DEPARTMENT OF CASTILLA Y LEÓN (hereinafter, the respondent) without receiving the legally established response, as stated by the claimant.

The claimant states that on June 26, 2023, they requested from the educational center where their daughter studies a copy of the global exam and other evaluation documentation for the subject of physics and chemistry taken by their daughter B.B.B. during the academic year 22/23. They assert that this request has not been answered within the one-month period.

On July 6, 2023, the claimant exercised the right of access before the respondent. In the registered application, they requested that an electronic copy of the psychopedagogical report prepared in the current academic year for their daughter be provided electronically and in electronic format, as well as copies of all tests and assessments used to prepare said report, including both copies of the test booklets used in the psychopedagogical evaluation by the counselor and the answers given by the student, not just the evaluation of the results made by the counselor.

On July 11, 2023, the respondent replied to this request, stating that:

"...at the end of June, the psychopedagogical report was handed over in person in the presence of the director, the counselor, and both parents. During the handover, they were informed about the content of the report, the tests used and authorized by the parents, and the results derived from them. A copy of the same is available to you at the center. Since the report is confidential, to avoid any security breach, it is handed over in person and not sent in other formats. Regarding the copies of the test booklets used in the evaluation, we inform you that they are a tool that is not part of the file to which you, as a legitimately interested party, have the right, and therefore a report derived from this tool is provided to you..."

The claimant states that the response represents a denial of the right of access. They also indicate that, although they were verbally informed of the content of the report in the meeting mentioned by the respondent, it is also true that the requested documents have not been provided to them.

Along with the complaint, they submit the documents presented to exercise the right of access and the response issued by the respondent on July 11, 2023.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the claimant's requests to be considered satisfied. Consequently, on November 1, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate.

The respondent states, in summary, that they have addressed the request by providing it with the means available to them and acting to protect the requested data.

FOURTH: After examining the document submitted by the respondent, it is forwarded to the claimant, so that, within ten working days, they may formulate any arguments they consider appropriate.

The claimant, in summary, believes that there is an interference with the requested right, the right of access, by not providing it through the chosen channel. They believe that their rights and the Law are being violated.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of LOPDGDD, the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by data subjects and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that the necessary response had been provided to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant had been satisfied. Consequently, on November 1, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. Once this period has elapsed, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights include access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right will be considered granted if the controller provides remote access to the data, being deemed that the request has been attended to (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so.

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On the other hand, the request will be considered excessive when the affected party chooses a means different from the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Conclusion

During the processing of this procedure, the entity being complained about, just as it had previously done with the complaining party, insists before this Agency that the personal data related to the exercise of the requested right of access is available to the complaining party at the requested locations.

The debate therefore centers on the means of delivering the copy of the personal data subject to the right, since while the complaining party asserts that they have the right to have it sent by email, the entity being complained about indicates that the copy of the personal data is available to the complaining party, so that they can choose the location that is most convenient for them at the secretariat of the educational center where their daughter studies.

Article 12.3 of the GDPR states that “3. The controller shall provide the data subject with information regarding its actions based on a request in accordance with Articles 15 to 22, and in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided otherwise.” (the underlining is ours)

Completing the above, Article 15.3 of the GDPR establishes regarding the mode of copy that “3. The controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee for any other copy requested by the data subject based on administrative costs. When the data subject submits the request by electronic means, and...

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unless otherwise requested, the information will be provided in a commonly used electronic format.” (the underlining is ours)

In this regard, the Guidelines 01/2022 on the rights of data subjects - Right of access, version 1.0, adopted on January 18, 2022, state that,

“32. In the case of requests made by electronic means, the information shall be provided by electronic means whenever possible and unless the data subject requests otherwise (see Article 12(3)). Article 15, paragraph 3, third sentence, complements this requirement in the context of access requests, indicating that the data controller is also obliged to provide the response in a commonly used electronic format, unless the data subject requests otherwise. Article 15, paragraph 3, assumes that, for data controllers who may receive electronic requests, it will be possible to provide the response to the request in a commonly used electronic format (for example, in PDF). This provision refers to all the information that must be provided in accordance with Article 15, paragraphs 1 and 2. Therefore, if the data subject submits the access request by electronic means, all information must be provided in a commonly used electronic format. Formatting issues are developed in section 5. The data controller must, as always, apply appropriate security measures, particularly when it concerns a special category of personal data (see point 2.3.4).” (the underlining is ours)

The regulation links the delivery of the copy of personal data by electronic means to cases where the data subject has exercised their right of access in this manner, unless otherwise requested, and all this without prejudice to the fact that the delivery in such a format may also be limited to cases where this is possible, especially when security measures need to be applied, particularly if special categories of personal data are involved.

Each data controller will have to determine, regarding the modality of the copy of personal data, the means through which they will facilitate the right of access, taking into account the characteristics of their own organization, the type of personal data affected, the necessary security measures, or the circumstances of the data subject, among others. And this is provided that it does not impose an excessive burden or an impediment for the data subject (frustrating the right itself).

This means that, in principle, the data controller cannot be required to provide the copy of personal

data through electronic means.

In the case at hand, the claimant requested their right of access through a written submission presented in person at the registry of an official body, specifically the Ministry of Finance and Public Function, and addressed to the Provincial Directorate of Education of León. The exercise of access also referred to personal data related to psychopedagogical tests and assessments.

Furthermore, it must be considered that the copy of the personal data includes health data of the claimant, which requires the adoption of specific security measures.

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And that the means provided by the respondent to deliver the copy of the personal data did not pose an impediment for the claimant.

Considering that the right of access has been available to the claimant since their request, this claim is dismissed.

In light of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim made by A.A.A. against the COUNCIL OF EDUCATION OF CASTILLA LEÓN.

SECOND: TO NOTIFY this resolution to A.A.A. and to the COUNCIL OF EDUCATION OF CASTILLA LEÓN.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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